



Donation Application Form

This form is required for all Donation Requests. Please note that only fully completed forms submitted by the Eligible Beneficiary will be processed. For any answer requiring more space than is given in this form, please attach complete answers on separate sheets of paper.

A. General Information Regarding Eligible Beneficiary

Organization Information

Legal Name of Charitable Organization: COMMUNAL ENTERPRISE NONPROFIT ZOLOCHIV CENTRAL DISTRICT HOSPITAL Administrative Address: Ukraine, 80700, Lviv region, Zolochyv city, 48, Akademyka Pavlova street

Phone: +38(0265)4-21-36

Fax:

Website: No

Charitable Registration # (if applicable):

Tax Identification # (if applicable):

Contact within the Charitable Organization (in case of questions):

Name: Taras Yatsunskyy

Title: Director

Phone: +380982593787

Email: zolcrl@i.ua

Bank Account Details:

Account Holder: COMMUNAL NONPROFIT ENTERPRISE ZOLOCHIV CENTRAL DISTRICT HOSPITAL
Account Number: UA243257960000026000301732118
Bank Code: 325796
Name of Bank: JSC "Oschadbank"

Is the Charitable Organization a public agency or owned or controlled by a government entity or Government Official* or is the Charitable Organization an owned/controlled government enterprise?

☒ Yes ☐ No

*Definition of a Government Official:

Government Officials are any individuals, whether elected or appointed, acting on behalf of any local, regional, state or national government (such as elected officials, customs officials, tax officials, judicial officials, or administrators etc.), as well as (i) individuals acting on behalf of a government-owned or government-controlled enterprise (such as doctors and staff of public hospitals and universities), (ii) individuals acting on behalf of a political party or as or on behalf of a candidate for public office, and (iii) individual acting on behalf of public international organizations (such as the United Nations, World Health Organization, International Committee of the Red Cross, World Bank and Organization for Economic Co-Operation and Development ("OECD")).



**FRESENIUS
MEDICAL CARE**

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Above definitions include the officers and employees of these organizations



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Provide a brief description of the Charitable Organization's background, overall mission and objective; a brochure is acceptable:

Hospital treats 16 patients in the region. Due to the urgent need and the patients number increasing, the hospital initiated the tender procedure. FMC Ukraine participated in this tender with requested products. FMC Ukraine is the only one participant in this tender. Due to mobilization of the General Manager of FMC Ukraine, the procedure of tender offer review was extended for 20 working days upon the request of FMC Ukraine, as it is temporarily impossible to sign the agreement in accordance with tender procedure (FMC Ukraine is still in the process of obtaining of electronic key for the Acting General Manager – Iryna Palyvoda). As of 08.03.2023 the hospital is almost out of stock for dialyzers, which may lead to the threat to patients' health and life. Considering that, the hospital asks for a donation of a certain number of consumables to be able to wait, when FMC Ukraine will have a possibility to sign a contract (contract's value equals to 836 474,64 UAH/21 230,00 EURO). The product needed: Dialyzers FX 60 classix - 48 pieces.

Countries where the Charitable Organization operates:

Ukraine

Briefly describe the business relationship, if any, between FMC and the Eligible Beneficiary so that any potential Conflicts of Interest may be evaluated:

Supplier of products and services

B. Donation Information

Application Date:		2023.08.03		Date Donation is needed:		ASAP	
Donation Type:		☐ Money		☐ Equipment			
		☒ Supplies		☒ Other (if yes, please specify)			
Description of Donation (specify currency): UAH							
Dialyzers FX 60 classix - 48 pieces							
Purpose of the Donation; attach exhibits if needed:							
Hospital treats 16 patients in the region. Due to the urgent need and the patients number increasing, the hospital initiated the tender procedure. FMC Ukraine participated in this tender with requested products. FMC Ukraine is the only one participant in this tender. Due to mobilization of the General Manager of FMC Ukraine, the procedure of tender offer review was extended for 20 working days upon the request of FMC Ukraine, as it is temporarily impossible to sign the agreement in accordance with tender procedure (FMC Ukraine is still in the process of obtaining of electronic key for the Acting General Manager – Iryna Palyvoda). As of 08.03.2023 the hospital is almost out of stock for dialyzers, which may lead to the threat to patients' health and life. Considering that, the hospital asks for a donation of a certain number of consumables to be able to wait, when FMC Ukraine							



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will have a possibility to sign a contract (contract's value equals to 836 474,64 UAH/21 230,00 EURO). The product needed: Dialyzers FX 60 classix - 48 pieces.

C. Documents provided by the Applicant:

Updated Corporate Documents: ☒ By-laws ☐ Articles of Association
☐ Power-of-Attorney ☐ Shareholders Meeting ☐ Other (if yes, please specify)

D. Obligations of Eligible Beneficiary upon request:

- a. Supply, without retaining or delaying, all the documents, information or any other resources which FMC requests to enable the activities indicated in Section B above;
- b. Send to FMC, timely and in advance, the detailed script and schedule for the performance of the activities indicated in Section B above;
- c. Plan, conduct and perform the activities indicated in Section B above, in full compliance with any provision given by FMC, strictly complying with the legislation in force;
- d. Keep accurate and updated records of all the costs, expenses, financial transactions and obligations related to the performance of the activities indicated in Section B above;
- e. For audit purposes, the records mentioned above shall be placed at the disposal of FMC or of whom it appoints;
- f. Assume responsibility for any indemnities as a result of damages or losses caused to FMC or to third parties, for action or omission of its own or by its agents, as well as for not observing or infringing legal provisions, regulations or ordinances in effect;
- g. Communicate to FMC any fact or act which may occur which delays the performance of the of the activities indicated in Section B above, including, but not limited to those caused by third parties and those resulting from Act of God and Force Majeure; and
- h. Ask for a previous written consent of FMC about any changes in the activities indicated in Section B above.

E. Confidentiality

- a. The Applicant agrees to keep the strictest confidentiality in relation to any information, whether they be written, verbal or visual, including, but not limited to those of a scientific, commercial, or marketing nature, which may have been furnished by FMC by force of this instrument;
- b. These stipulations and obligations shall not apply to information, which is: (i) evidently in the public knowledge before the activities indicated in Section B above (ii) which becomes public knowledge, with evidence, after such activities, except if this occurs as a result of an act or omission by the Applicant; (iii) has been disclosed by third parties foreign to



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this instrument, provided that such disclosure has not been improper and (iv) is revealed as a result of judicial requisition or other valid determination by the government; and

- c. This Section E shall remain in force from the disclosure of the information until 5 (five) years as from the date of this document.

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Notice to Eligible Beneficiary:

1. Please provide the Donations Application at least 4¹ weeks prior to the date by which the donation is requested.
2. Please attach and reference any information that supports your application. FMC may request additional documents or information if needed.
3. Completion of this form is required for all Donation requests. This application will serve as a basis for donation approval.
4. All Donation requests will be reviewed and approved in accordance with FMC's Donations Policy prior to any funding.
5. Applications requesting a political donation or contribution will be rejected. Please refer to the alternate application process for such requests covered under the respective policies.
6. FMC will consider Donation Applications from charitable organizations only. Applications provided by an individual will be rejected.
7. FMC reserves the right to reject any application.

I confirm that I am duly authorized by COMMUNAL NONPROFIT ENTERPRISE ZOLOCHIV CENTRAL DISTRICT HOSPITAL to request this Donation on the organization's behalf, and that all information provided on this application is accurate and complete. I understand that the withholding of information or provision of false information will result in a rejection of the application. I confirm that (i) the requested Donation is not contingent upon, or intended to influence or reward, any past, current, or future FMC business transaction, opportunity, or government approval, nor is it based on the volume or value of referrals or orders provided by or anticipated from the charitable organization and (ii) will be used for the stated purpose herein.

Printed Name, Surname, & Title

08.08.2023p

Place/Date

Signature and Stamp of the administrative Management / authority or signature and stamp of applying Eligible Beneficiary

1 To be determined based on frequency of committee's meeting schedule.